

unconscionable. *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817–820; *Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1409.

The Agreement is not substantively unconscionable. Its terms follow CAA procedures, provide each party the right to conduct reasonable discovery, require a written arbitral award, and mandate equal cost sharing. (Code Civ. Proc. §§ 1283.05, 1283.4, 1281.97, 1281.98.) The terms are bilateral and balanced. Nothing in the Agreement shocks the conscience or operates in an impermissibly one-sided manner.

Third-Party Litigation Exception: The Court previously identified in its April 20, 2026 Order a potential issue under Code of Civil Procedure § 1281.2(c), which grants the Court discretion to deny or stay arbitration where a party to the arbitration agreement is also a party to pending litigation with non-signatories arising from the same transaction, and conflicting rulings on a common issue of law or fact are possible.

The Court is satisfied that the third-party litigation exception does not bar arbitration here. While the first two statutory conditions are met — the non-signatory defendants (Hyundai Motor America, Lithia, and Santander) are parties to this action and the claims arise from the same underlying transaction — there is little risk of conflicting rulings on a common determinative issue. The arbitration will address solely Safe-Guard's contractual and statutory obligations to Plaintiff under the Safe-Guard Agreement. The Court also notes that Hyundai and Plaintiff have submitted a joint stipulation and proposed order to arbitrate their dispute. The court proceedings, as to the remaining defendants, will address the independent legal duties of the dealer and the lender — duties that are distinct in both source and substance from those at issue in arbitration. Shared factual background does not, without more, create the risk of incompatible results that § 1281.2(c) is designed to prevent.

Because all of Plaintiff's claims against Safe-Guard are subject to arbitration, a stay of those claims is mandatory. CCP § 1281.4. The Court further finds that a stay of the entire proceeding as to all defendants is appropriate pending the outcome of arbitration. Safe-Guard's Motion to Compel Arbitration is **GRANTED**. This action is stayed pending the outcome of arbitration. The matter is set for review regarding status of arbitration on **Monday, November 23, 2026 at 9:00 a.m. in Department 64**. Safe-Guard and Plaintiff are ordered to file a status statement at least five court days prior to the review hearing.

9:00 a.m. Review Hearings

BARLEY REAL ESTATE INVESTMENTS LLC VS. KRAUSE

CASE NUMBER: 26CVG-00051

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

BELLA VISTA WATER DISTRICT VS. PG&E CORPORATION, ET AL.

CASE NUMBER: 24CV-0206201

This matter is on calendar for trial setting. Plaintiff filed a status statement on May 19, 2026 stating that the parties have met and conferred and all are available for a December 15, 2026 trial date. The Court is prepared to set this matter for trial on the agreed upon date. The Court has record of jury fees posted by Defendants but not by Plaintiff. Plaintiff is granted ten days leave to post jury fees. Failure to do so will be deemed a waiver of the right to a jury trial. The parties should appear today to set the matter for trial.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

This matter is on calendar for status. On January 1, 2026, Petitioner filed a Petition for Approval of Compromise of Claim. The Petition is not expedited, so it must be set for hearing. Petitioner is directed to notice the matter for hearing on the Court's law and motion calendar, which is held Mondays at 8:30 a.m. in Department 64. Additionally, Petitioner has submitted an Application for Appointment of Guardian Ad Litem, but no proposed order. A proposed order (Judicial Council form CIV-011) must be submitted. This matter is continued to **Monday, July 13, 2026 at 9:00 a.m. in Department 64** for status. The clerk is directed to mail today's minutes to counsel of record.

HALL VS. SMISOR

CASE NUMBER: 25CV-0206961

This matter is on calendar for review regarding status of the case. The litigation is now at issue. The Court designates this matter as a plan II case and intends on setting the matter for trial no later than February 2, 2027. Defendant has posted jury fees, but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

LVNV FUNDING, LLC VS. MCINTYRE

CASE NUMBER: 25CVG-00881

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on November 25, 2025 informing the Court that the matter would be dismissed no later than June 10, 2027. The matter is continued to **Monday, July 12, 2027 at 9:00 a.m. in Department 64** for status of dismissal. Should the matter not be dismissed by the review hearing, the Court intends to dismiss the matter per CRC 3.1385(c)(2) and any good cause for not doing so will need to be provided at the hearing. Alternatively, the parties may submit a stipulation and order for dismissal with the Court retaining jurisdiction per CCP § 664.6. No appearance is necessary on today's calendar.

RAMIREZ CUATEL VS. VAN DRESSAR

CASE NUMBER: 25CV-0208118

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than January 5, 2027. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.